

Glanders and Farcy (Tamil Nadu Amendment) Act, 1965

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State of Tamilnadu- Act

Glanders and Farcy (Tamil Nadu Amendment) Act, 1965

TAMILNADU

India

Glanders and Farcy (Tamil Nadu Amendment) Act, 1965

Act 36 of 1965

Published on 25 January 1966

Commenced on 25 January 1966

[This is the version of this document from 25 January 1966.]

[Note: The original publication document is not available and this content could not be verified.]

Glanders and Farcy (Tamil Nadu Amendment) Act, 1965

(Tamil Nadu Act

36 of 1965

)

Statement of Objects and Reasons - Glanders and Farcy Tamil Nadu (Amendment) Act, 1965. - South African Horse Sickness is considered to be a dangerous epidemic among horses. Although no case of the disease has so far been reported in this State, it is feared that unless appropriate preventive and remedial measures are taken in advance, there might be an outbreak of the said disease among horses to this State through the bringing into the State from outside or the transport from one place to another within the State of infected horses. It is also considered necessary to have all horses in any specified area to which the Act is made applicable compulsorily vaccinated in order to prevent the spread of the disease. To enable them to take effective preventive and remedial measures in this regard, the Government have

decided to introduce in the Act a provision similar to section 5 of the Madras Rinderpest Act, 1940 (Madras Act XIX of 1940). New section 3-A proposed to be inserted by clause 2 provides for this. Clause 3 seeks to amend section 13 to provide penalty for failure to comply with the terms of any notification issued under section 3-A. Clause 4 makes consequential amendment in section 14 of the Act.

2. The Bill is intended to give effect to the above decision.

Published in Part IV-Section 3 of the Fort St. George Gazette, dated the 9th November 1965.

Received the assent of the President on the 25th January, 1966 and published in Part IV, section 4, page 15, of the Fort St. George Gazette, dated 2nd February 1966.

An Act to amend the Glanders and Farcy Act, 1899, in the application to the [State of Tamil Nadu]

[Substituted for the words 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Be it enacted by the Legislature of the [State of Tamil Nadu]

[Substituted for the words 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

in the Sixteenth Year of the Republic of India as follows:

1.
Short title and extent.
(1)
This Act may be called the Glanders and Farcy (Tamil Nadu Amendment) Act, 1965.

(2)
It extends to the whole of the [State of Tamil Nadu]
[Substituted for the words 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

2.
Insertion of new section 3-A in Central Act XIII of 1899.
- After section 3 of the Glanders and Farcy Act, 1899 (Central Act XIII of 1899) (hereinafter referred to as the principal Act), the following section shall be inserted, namely:-

3A.
Power to vaccinate and regulate movement of horses. - The State Government may, for the purpose of preventing the outbreak or spread of all or any of the diseases specified in a notification under sub-section (1) of section 2, in or from any area in the State, by notification,-

(a)
direct that all persons keeping horses in such area shall have them compulsorily vaccinated in accordance with such rules as may be prescribed; or

(b)
prohibit or regulate, subject to such restrictions and conditions as may be prescribed, the bringing into the State, otherwise than across a customs frontier as defined by the Central Government, or transport within the State, of any horse which is diseased or which is not vaccinated against South African Horse Sickness or of any product or part or carcass of any such horse or of any fodder, bedding or other thing used in connection with such horse.

(c)
Nothing contained in this section shall apply to any animal belonging to, or under the control or possession of, the Armed Forces of the Union."

3.
Amendment of section 13, Central Act XVIII of 1899.
- In section 13 of the principal Act, after the word "whoever", the words, figure and letter "fails to comply with or contravenes the terms of any notification issued under section 3-A, or" shall be inserted.

4.
Amendment of section 14, Central Act XIII of 1899.
- In sub-section (2) of section 14 of the principal Act, -

(i)

in clause (d), the word "and" at the end shall be omitted-

(ii)

in clause (e), the word "and" shall be added at the end;

(iii)

after clause (e), the following clause shall be added, namely:

"(f) provide for all matters expressly required or allowed by this Act to be prescribed.".

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